

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

IMPACT PRODUCTS, LLC AND SAFETY ZONE, LLC,
Complainants

v.

CMA CGM S.A., *Respondent*.

DOCKET NO. 24-07

Served: July 31, 2024

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

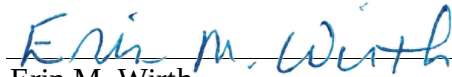
PROTECTIVE ORDER

On July 25, 2024, the parties filed a joint motion requesting entry of a confidentiality stipulation and protective order with a copy of the proposed order. The motion states that: “[i]ssuance of a protective order is necessary and required to enable the parties to fully respond to discovery requests, which may cover information and documents that are confidential, proprietary, and/or commercially sensitive.” Motion at 1.

The initial order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 5.

The proposed protective order is a stipulation between the parties and is reasonable even though it covers material that would not be entitled to confidential treatment under the Commission’s rules. For documents used in the proceeding, such expansive confidentiality will not be granted. Nothing in the order shall limit access to documents submitted in this proceeding from the Presiding Officer, the Commission, Commission staff and personnel, or reviewing courts or their staff. Moreover, the parties should note that after the initial decision is issued, the undersigned has no authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

The parties have established good cause to enter the confidentiality stipulation and proposed protective order. Accordingly, the consent motion is **GRANTED**, and it is hereby **ORDERED** that the protective order be entered as an order in this proceeding.


Erin M. Wirth
Chief Administrative Law Judge